



Notification Waiver Determination

Triton – Bureau Veritas Fuel & Coal Testing, Inspection and Certification Division

Acquisition	Power BidCo Netherlands B.V., Power BidCo UK Limited and Power BidCo US LLC, each an indirectly wholly controlled special purpose vehicle of Triton Fund 6 GP SARL, propose to acquire 100% of each of IOL Investments B.V, Inspectorate International Ltd and Bureau Veritas Commodities & Trade Inc (together, the Bureau Veritas Fuel & Coal Testing, Inspection and Certification Division) from three subsidiaries of Bureau Veritas S.A., namely Bureau Veritas Nederland Holding B.V., Bureau Veritas Commodity Services Limited and Bureau Veritas Holdings Inc. (together, Bureau Veritas), as described in the transaction documents provided as part of the application (the Acquisition). Triton Fund 6 GP SARL applied for a notification waiver in respect of the Acquisition.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	9 September 2026

Parties to the Acquisition	Triton Fund 6 GP SARL in its capacity as general partner of Triton Fund 6 SCSp, together with a number of other limited partnerships, form part of Triton Fund 6. Triton Fund 6 is one of the investment funds managed and advised by entities being part of the Triton group (Triton). Triton is a private equity investment firm dedicated to investing in medium sized companies headquartered in Central and Northern Europe, with a particular focus on three core sectors: Business Services, Industrial Tech and Healthcare. The target entities comprise the Bureau Veritas' global Fuel & Coal Testing, Inspection and Certification division, which provides a wide range of inspection and laboratory testing services for minerals, coal, used oil, gas & petrochemicals. The division comprises of three principal product lines: • Oil & Petrochemicals (O&P), comprising O&P Trade, O&P Upstream and on-site/outsourced laboratory services • Specialties, comprising Oil Condition Monitoring, Marine Fuels and Renewable Fuels • Coal, comprising Coal Upstream, Coal Downstream and Coal Trade.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and

	had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition, given: a. there is no horizontal overlap between Triton (or its connected entities) and the Bureau Veritas Fuel & Coal Testing, Inspection and Certification Division in Australia b. there is a low risk of foreclosure or other concerning vertical or conglomerate effects resulting from exclusionary conduct, bundling or tying of products or services post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act